

HOUSE No. 4916

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth I. Gordon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing ranked choice voting in the town of Bedford.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/6/2026</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>2/11/2026</i>

HOUSE No. 4916

By Representative Gordon of Bedford, a petition (accompanied by bill, House, No. 4916) of Kenneth I. Gordon (by vote of the town) for legislation to authorize ranked choice voting in the town of Bedford. Election Laws. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing ranked choice voting in the town of Bedford.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. RANKED CHOICE VOTING

2 (a) For the purposes of this section, the following terms shall, unless the context clearly
3 requires otherwise, have the following meanings:

4 "Concluded ballot", a ballot that does not rank any continuing candidate or contains an
5 overvote at the highest-ranked continuing candidate.

6 "Continuing candidate", a candidate who has not been defeated.

7 "Highest-ranked continuing candidate", the continuing candidate with the highest ranking
8 on a voter's ballot. Where a ballot omits 1 or more rankings, the next highest ranking shall be
9 used for determining the highest-ranked continuing candidate.

10 "Overvote", a circumstance in which a voter ranks more than 1 candidate at the same
11 ranking.

"Ranking", the number assigned on a ballot by a voter to a candidate to express the voter's preference for that candidate. Ranking number 1 shall be the highest ranking, ranking number 2 shall be the next-highest ranking, and so on.

(b) All elected town offices shall be elected by ranked choice voting, except for single-seat offices when the number of candidates printed on the ballot is less than or equal to 2 or multi-seat offices when the number of candidates printed on the ballot is less than or equal to the number of seats to be elected. Ranked choice voting elections shall be tabulated in rounds pursuant to this section.

(c) In any single-seat election, each round shall begin by counting each ballot as 1 vote for its highest-ranked continuing candidate. Concluded ballots shall not be counted for any continuing candidate. Each round shall proceed sequentially as follows:

(1) If there are 2 continuing candidates, the candidate with the most votes shall be elected, and tabulation shall be complete.

(2) If there are more than 2 continuing candidates, the candidate with the fewest votes shall be defeated and a new round shall begin.

(d) In any multi-seat election, the first seat shall be filled pursuant to the tabulation process established in subsection (c). The remaining seats shall be filled by repeated application of the tabulation process established in subsection (c); provided, however, that all rankings marked for candidates who have already been elected shall be disregarded and ballots shall be counted as 1 vote for their next highest-ranked continuing candidate.

(e) If 2 or more candidates are tied with the fewest votes such that tabulation cannot continue until the candidate with the fewest votes shall be defeated, the tied candidate with the fewest votes in the prior round shall be defeated. If 2 or more such tied candidates were tied with the fewest votes in the prior round, the second tie shall be decided by referring similarly to the number of votes for each candidate in the second-prior round. This process shall be applied successively as many times as necessary. The Town Clerk shall establish a method of tiebreaking that will be used if 2 or more candidates are tied with the fewest votes in the first round of tabulation.

(f) The Town Clerk shall have the authority to promulgate whatever rules are necessary to implement this act.

SECTION 2. The following question shall be placed on the ballot to be used at a regular state or municipal election or at a special election called for the purpose of presenting the question to the voters: Shall an act entitled "An Act Authorizing Ranked Choice Voting in the Town of Bedford" be accepted?

(a) The Town Counsel shall prepare the summary of the proposed legislation, which shall appear on the ballot along with the question provided in this section.

(b) If a majority of votes cast in answer to the question is in the affirmative, the town shall be taken to have accepted the legislation, but not otherwise.

SECTION 3. This act shall take effect immediately upon approval of said question; provided, however, that it shall be applicable only to town elections whose date is 90 days or more after the day the act is accepted.